

LAW AND MOTION TENTATIVE RULINGS

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the court's tentative ruling, plaintiff was instructed that if she intended to reset a hearing for leave to file an amended complaint, a new notice of motion and related papers would be necessary.

The complaint plaintiff filed on July 27, 2026, is stricken and she is instructed to proceed pursuant to Code of Civil Procedure sections 472, 473, and 1005, and Cal. Rules of Court, rule 3.1324. In the alternative, the parties can submit a stipulation and order allowing an amended complaint.

No. 26CV00232

LAING v. STEINBERG

**DEFENDANT LYNN STEINBERG'S MOTION TO STRIKE PURSUANT TO
CODE OF CIVIL PROCEDURE SECTION 425.16**

**DEFENDANT REGINA MARSHALL'S MOTION TO STRIKE PURSUANT TO
CODE OF CIVIL PROCEDURE SECTION 425.16**

**DEFENDANT MARSHALL'S MOTION TO SEAL JUVENILE CUSTODY
PROCEEDING COURT RECORDS**

The motion to seal is granted. The motions to strike are granted.

I. BACKGROUND AND COMPLAINT

This case stems from a protracted custody dispute between Justin and Jessica Laing over their children, Maya (who was a minor at the time of the incidents which gives rise to her case) and minor S.R.L. Maya and S.R.L are the plaintiffs in this case.

Defendant Regina Marshall, Ph.D. (Dr. Marshall) was the court-appointed reunification therapist for the Laing family in the family law case and provided reunification therapy services. (Compl. at ¶ 5.) Defendant Lynn Steinberg, Ph.D. (Dr. Steinberg), is a marriage and family therapist and provided intensive reunification therapy services. Steinberg conducted a four-day reunification therapy session at her residence in Los Angeles with Maya and S.R.L. (Compl. at ¶ 4.)

In the fall of 2021 Justin and Jessica Laing and their children began court-ordered reunification therapy with Dr. Marshall, who provided reports to the court "documenting consistent and substantial progress." (Compl. at ¶¶ 57-58.) In July 2022, the children reported to their father conduct by Jessica which they believed to be indicative of sexual abuse and neglect.

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(Compl. at ¶ 60.) ¶ “Defendant Marshall completely reversed her consistent clinical assessments. She concluded that Justin was manipulating the Children and characterized his prior year of cooperation – which she had consistently endorsed – as ‘superficial’ compliance designed to ‘mask the ongoing presence of this belief system.’” (Compl. at ¶ 61.) Dr. Marshall recommended that the court order intensive residential family intervention therapy (IRT). (Compl. at ¶62.)

Emergency hearings on IRT and custody were held October 19-20, 2022. (Compl. at ¶ 61, 62.) “Based upon the testimony and representation of Defendant Steinberg, Defendant Marshall, Crawford, and others, the court ordered the Children to participate in a four-day intensive reunification therapy program with Defendant Steinberg.” (Compl. at ¶ 82.) The complaint alleges that on the night of October 20, 2022, defendant Assisted Interventions Inc. (AI) took custody of the children and transported them to Dr. Steinberg’s Los Angeles home. The complaint asserts that AI picked up Maya against her will, slammed her head into a vehicle and pushed her into a van, resulting in a concussion, a cut on her head, and a split lip. S.R.L. alleges violent force was also used against him while forcibly removing him, causing his glasses to break. (Compl. at ¶¶ 85-88.)

Drs. Steinberg and Marshall allegedly falsely imprisoned the children during IRT. The children assert they were subject to psychological abuse, manipulation, and coercion and they asked to leave on multiple occasions. (Compl. at ¶ 91, 92.) After this, the children were forced to move to Olympia, Washington with their mother and to continue therapy with Drs. Steinberg and Marshall. (Compl. at ¶ 99.)

The complaint alleges negligence (against all defendants), negligent and intentional infliction of emotional distress (against Drs. Steinberg and Marshall), violation of the Confidentiality of Medical Information Act (against Dr. Steinberg), breach of fiduciary duty (against Drs. Steinberg and Marshall), defamation (against Dr. Steinberg), battery (against AI) and false imprisonment (against Drs. Steinberg and Marshall).

In response to the allegations, both Drs. Marshall and Steinberg filed motions to strike pursuant to Code of Civil Procedure section 425.16. Dr. Marshall also filed a motion to seal certain juvenile court records.

II. MARSHALL’S MOTION TO SEAL

The unopposed motion is granted. Dr. Marshall seeks to seal (1) the exhibits of court records attached to her declaration in support of her Anti-SLAPP motion and (2) exhibits attached to the request for judicial notice of records from Santa Cruz County Superior Court case no. 18FL01357 submitted in support of her Anti-SLAPP motion. Dr. Marshall argues these documents should be sealed because they were previously sealed in the family division of the

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Santa Cruz County Superior Court and they contain confidential information of a minor custody case.

The court may order a record be filed under seal if it expressly finds facts that establish:

(1) There exists an overriding interest that overcomes the right of public access to the record;

(2) The overriding interest supports sealing the record;

(3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;

(4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

“[T]rial courts may redact or seal particular documents to protect private information concerning an overriding privacy interest, including matters pertaining to the custody and visitation of minor children.” (*In re Marriage of Nicholas* (2010)186 Cal.App.4th 1566, 1568.) The documents requested to be sealed were already sealed by the family law court and reports of the evaluator are confidential per California law (Fam. Code, § 3111, subd. (b).). There is an overriding interest in keeping these sensitive records sealed and limiting their access to the public. The proposed sealing is narrowly tailored and there are no less restrictive means to achieve the overriding interest of keeping these records confidential and sealed.

**III. MOTIONS TO STRIKE PURSUANT TO CODE OF CIVIL PROCEDURE
SECTION 425.16**

Dr. Marshall argues the claims against her arise from public participation and consists of protected activity because the conduct at issue involves a judicial proceeding and a matter of public interest. Dr. Marshall maintains plaintiffs are unable to establish a likelihood of success on the merits because she is entitled to quasi-judicial immunity, rendering her conduct privileged, and because the litigation privilege applies. Similarly, Dr. Steinberg states that the wrongful conduct alleged against her arose from a protected activity –her testimony in the underlying family law case and the services she then provided pursuant to the family court’s order. She denies releasing confidential information or defaming plaintiffs.

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IV. DISCUSSION

A. Motions to strike pursuant to Code of Civil Procedure section 425.16

Code of Civil Procedure section 425.16, subdivision (b) provides: “A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” The court must construe this section broadly. (Code Civ. Proc., § 425.16, subd. (a).)

In ruling on a special motion to strike under section 425.16, the court must follow a two-step process. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party’s right of petition or free speech. (*Ibid.*) This is a threshold issue; if moving party fails to show the conduct is constitutionally protected, the court need not address prong two. (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 733.)

i. Prong one – protected activity

In the first step, the defendant must make a “threshold showing” that the challenged claims arise from protected activity. (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056.) “[T]he moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.” (*Baral v. Schnitt, supra*, 1 Cal.5th at 396.) “A defendant meets the burden of showing that a plaintiff’s action arises from a protected activity by showing that the acts underlying the plaintiff’s cause of action fall within one of the four categories of conduct described in section 425.16, subdivision (e).” (*Siam v. Kizilbash* (2005) 130 Cal.App.4th 1563, 1569.) “[T]he critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity [Citations.].” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.)

Drs. Marshall and Steinberg have shown their conduct as court-appointed therapists is protected under the anti-SLAPP statute. Section 425.16, subdivision (b)(1) provides “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” Subsection (e) defines an “‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive,

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or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

Drs. Steinberg and Marshall’s testimony before and reports to the family law court falls squarely within section 425.16, subdivision (e)(1). Further, the doctors’ therapy services fall within section 425.16, subdivision (e)(2) as statements made in connection with an issue under consideration or review by a judicial body. To the extent plaintiffs allege that the therapy services included conduct in addition to statements, that conduct falls within section 425.16, subdivision (e)(4). (See *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1117 [legislature “ ‘equated a public issue with the authorized official proceeding to which it connects’ ”].)

Plaintiffs argue section 425.16 does not protect professional misconduct or activity that is illegal as a matter of law. (Opp. at p. 5.) “But when the defendant's assertedly protected activity *may or may not be* unlawful, the defendant may invoke the anti-SLAPP statute *unless* the activity is unlawful as a matter of law. [Citation.] An activity may be deemed unlawful as a matter of law when the defendant does not dispute that the activity was unlawful, or uncontroverted evidence conclusively shows the activity was unlawful.” (*Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 711-712.) Here, neither therapist concedes their conduct was illegal, and Dr. Steinberg denies she violated the law. (Supp. Decl. of Steinberg at ¶ 10.)

Plaintiffs also argue that Dr. Marshall was not authorized to provide treatment to them during IRT. The order permitted Jessica Laing and/or her transportation service to pick up the children. Dr. Steinberg was the appointed reunification therapist. Dr. Marshall was to be engaged in continued family therapy upon conclusion of the four-day therapeutic intervention. Dr. Marshall, in her declaration, stated that she did not lead the four-day reunification therapy, but was present and that nothing in the family court’s order prohibited her from collaborating with Dr. Steinberg or providing services during the reunification therapy program. She states that, as the therapist who had worked with the children for at least a year and was specifically tasked with working with them after IRT, her insights could have been useful. There is not sufficient evidence to show Dr. Marshall acted beyond the scope of her appointment.

The causes of action for violation of confidentiality pursuant to Civil Code section 56.10 and defamation, alleged only against Dr. Steinberg, stem from her appearance on a podcast where she allegedly “disclosed Plaintiffs’ physical and mental conditions, events from the Camp,

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and statements Plaintiffs made during private therapy sessions.” (Opp. at p. 13.) Dr. Steinberg argues her public comments were made in the furtherance of the exercise of her constitutional right of petition or free speech and are protected and that she appeared on the podcast to discuss IRT, which was a topic of significant public debate. She maintains she never revealed any confidential medical information about plaintiffs, did not name plaintiffs, and denied ever making statements on Facebook or elsewhere online regarding plaintiffs or their mother. (Supp. Decl. of Steinberg at ¶¶ 11-12.)

Dr. Steinberg’s statements fall within the Code of Civil Procedure section 425.16 framework in that they were made in a public forum (podcast) and were made in connection with a matter of public interest (IRT). The Court reviewed the transcript of the podcast attached as an exhibit to Justin Laing’s declaration. Dr. Steinberg does not name the plaintiffs; she appears to describe in general terms her role and the removal of unnamed children to attend her therapy program. She states that the children “were in perfectly fine shape” upon their arrival at her office. Dr. Steinberg brought this up in connection with her remarks that she was inundated with media coverage and individuals upset with her after the video of plaintiffs’ removal was published.

Both moving parties have made a threshold showing that their conduct was protected.

ii. Prong two – probability of prevailing by nonmoving party

The burden now shifts to plaintiffs to “demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.” (*Baral v. Schnitt, supra*, 1 Cal.5th at p. 396.)

“Courts have consistently emphasized the privilege, when applicable, is absolute and precludes *all* tort theories of recovery except malicious prosecution.” (*Bonni v. St. Joseph Health System* (2022) 83 Cal.App.5th 288, 306.) Further, it is to be broadly applied with doubts resolved in its favor. (*Id.* at p. 300.) “The litigation privilege is absolute; it applies, if at all, regardless whether the communication was made with malice or the intent to harm.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) “The litigation privilege is also relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing. [Citation.]” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323.)

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Here, both therapists argue that plaintiffs cannot establish a likelihood of success on the merits because they are entitled quasi-judicial immunity and their conduct is privileged. Plaintiffs argue that neither the litigation privilege nor judicial immunity apply because Dr. Marshall's actions upon which liability attaches "were all done outside of any official judicial capacity." (Opp. at p. 15.) Similarly, plaintiffs argue that "Dr. Steinberg conflates her public testimony in *Laing* with her abusive conduct in private... ." (Opp. at p. 7.)

First, the litigation privilege pursuant to Civil Code section 47, subdivision (b) "provides absolute immunity for publications and statements made in an 'official proceeding' if they have some logical connection to the suit and are made to achieve the objects of the proceeding." (*Howard Jarvis Taxpayers Assn. v. Powell* (2025) 105 Cal.App.5th 955, 971.) The evidence shows that Dr. Marshall and Steinberg's conduct occurred within the context of their court-ordered duties in the family law matter. The basis for claims alleged against them started with and were defined by the family court's decision to order IRT. "[C]ommunications with 'some relation' to judicial proceedings' are 'absolutely immune from tort liability' by the litigation privilege [Citation.] It is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards. [Citation.]" (*Rusheen v. Cohen, supra*, 37 Cal.4th 1048, 1057.)

The primary claims against both therapists are that they participated in the process of IRT with the children, the methods which caused trauma and damage. "[W]the cause of action is based on a communicative act, the litigation privilege extends to those noncommunicative actions which are necessarily related to that communicative act." (*Rusheen v. Cohen, supra*, 37 Cal.4th at p. 1052.) The complained of conduct, the court ordered IRT, would necessarily include communicative acts that would be subject to anti-SLAPP protections.

Plaintiffs cite *Mero v. Sadoff* (1995) 31 Cal.App.4th 1466 which concerns the liability of a worker's compensation doctor who examined the plaintiffs and allegedly injured her. This case was not brought in the context of an anti-SLAPP suit, nor was it brought by a court-appointed therapist, as is the case here, and so is factually and procedurally distinguishable.

Drs. Steinberg and Marshall are also entitled to quasi-judicial immunity as a person "appointed by the courts for their expertise, such as mediators, guardians ad litem, therapists" [Citation.]" (*Seeman v. Mosier* (2026) 118 Cal.App.5th 460, 472l.) "Without immunity, these persons 'will be reluctant to accept court appointments or provide work product for the court's use. Additionally, the threat of civil liability may affect the manner in which they perform their jobs.' [Citation.]" (*Holt v. Brock* (2022) 85 Cal.App.5th 611, 623.) Based upon the litigation privilege and quasi-judicial immunity, the causes of action alleged against both Drs. Marshall and Steinberg are barred.

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Even if the two causes of action alleged only against Dr. Steinberg do not fall squarely within the litigation privilege or quasi-judicial immunity, plaintiffs have not provided sufficient evidence that the claims have minimal merit. Dr. Steinberg never mentioned plaintiffs' names during the podcast and stated the unnamed children were in "fine shape" with "no marks." Plaintiffs contend this was false because Maya arrived with a split lip and was hyperventilating, according to their declarations. Dr. Steinberg also attributed statements made by the unnamed children in the podcast that they were sorry to their mother. Maya contends this statement was made under coercion. (Decl. of M. Laing at ¶ 49.) The Court does not find plaintiffs provided sufficient evidence to support a cause of action for disclosure of confidential medical information and defamation.

The motions are granted.

DEFENDANT MARSHALL'S REQUEST FOR JUDICIAL NOTICE

1. Order dated June 29, 2021, appointing Dr. Marshall as an expert psychologist in case no. 18FL01357 (attached as ex. A). Granted.
2. November 29, 2021, report authored by Dr. Marshall and filed in case no. 18FL01357 (attached as ex. B). Granted.
3. December 31, 2021, report authored by Dr. Marshall and filed in case no. 18FL01357 (attached as ex. C). Granted.
4. June 10, 2022, report authored by Dr. Marshall and filed in case no. 18FL01357 (attached as ex. D). Granted.
5. September 29, 2022, report authored by Dr. Marshall and filed in case no. 18FL01357. (attached as ex. E). Granted.
6. Transcript of sworn testimony by Dr. Marshall (attached as ex. F). Granted.
7. Order dated October 19, 2022, filed in case no. 18FL01357 (attached as ex. G.) Granted.
8. Order dated March 22, 2023, filed in case no. 18FL01357 (attached as ex. H.) Granted.